



Front Pay as an EEO Remedy

Overview

Front pay is a form of equitable relief that compensates an individual when reinstatement is not possible after a finding of discrimination. Reinstatement is preferred to an award of front pay, so front pay awards are relatively uncommon. Awards of front pay are only issued when the complainant is able to work but cannot do so because of circumstances beyond the control of the complainant. *See Graham v. U.S. Postal Service*, [108 LRP 48093](#), EEOC No. 0720030064 (EEOC OFO 2008). If a complainant is unable to work, an award of compensatory damages for lost wage-earning capacity, which is discussed below, may be a remedy.

This Quick Start Guide covers the following Key Points:

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Key Points

These key-point summaries cannot reflect every fact or point of law contained within a source document. For the full text, follow the link to the cit source. The references to *Hadley* in this Quick Start Guide are to federal employment law expert Ernest Hadley's treatise, *A Guide to Federal Sector Equal Employment Law and Practice* (Dewey Publishing, Inc.), to which **cyberFEDS®** has exclusive Web rights.

In general

- **Hadley:** Front pay may be awarded in lieu of reinstatement under three circumstances: 1) where no position is available, making reinstatement impossible; 2) where a subsequent working relationship between the parties would be antagonistic; or 3) where the employer has a record of long-term resistance to antidiscrimination efforts. *Hadley Guide to Federal Sector Equal Employment Law and Practice: Front Pay*. See *Pollard v. E.I. du Pont de Nemours & Co.*, [101 FEOR 90047](#), 121 Ct. 1946 (2001); *York v. Department of the Navy*, [94 FEOR 3313](#), EEOC No. 01930435 (EEOC 1994).
- Front pay cannot be awarded as a remedy for discrimination unless the complainant is ready and able to work, but is prevented from doing so for reasons beyond his control, including a continued antagonistic relationship with the agency or the absence of an appropriate position. *Jackson v. U.S. Postal Service*, [108 LRP 12048](#), EEOC No. 0720060048 (EEOC OFO 2008).
- Front pay does not fall within the definition of compensatory damages, and therefore is not subject to the \$300,000 cap on compensatory damages that applies to the federal government. *Pollard v. E.I. du Pont de Nemours*, [101 FEOR 90047](#), 121 S. Ct. 1946 (2001).
- The EEOC directed the agency to include in its front pay calculation the complainant's wages, agency contributions to health benefits and insurance premiums, agency contributions to the Civil Service Retirement System, and the Thrift Savings Plan. *Knott v. U.S. Postal Service*, [111 LRP 47934](#), EEOC No. 0720100049 (EEOC OFO 2011).
- In general, reinstatement is preferred to an award of front pay. *Augustine S. v. Department of Homeland Security, Citizenship and Immigration Services*, [115 LRP 54114](#), EEOC No. 0720110018 (EEOC OFO 2015).
- The 6th U.S. Circuit Court of Appeals found that reinstatement, rather than front pay, is the favored equitable remedy for constructive discharge. *McKelvey v. Department of the Army*, [111 LRP 77485](#), 450 F. App'x 532 (6th Cir. 2011).
- As a general rule, front pay is not available when there is evidence of employee wrongdoing that would warrant termination of the employee for a legitimate reason. *Policy and Guidance -- Enforcement Guidance: After-acquired Evidence and McKennon v. Nashville Banner Publishing Co.*, 115 S. Ct. 879, 65 EPD Par. 43,368 (1995).
- The 8th U.S. Circuit Court of Appeals found that evidence of post-employment misconduct must be considered on a case-by-case basis in determining if the misconduct should limit the remedy, including front pay, in a successful discriminatory termination suit. *Sellers v. Department of Transportation*, [104 LRP 9733](#), 358 F.3d 1058 (8th Cir. 2004).

Front pay awarded

- The EEOC agreed with an administrative judge's determination that a jointly employed social worker was subjected to sexual harassment by her supervisor who responded to her complaint about the harassment by enlisting upper-level managers to join her in a "retaliatory vendetta" that eventually led to the social worker's constructive discharge. The EEOC found that the AJ appropriately determined that if the social worker could not be placed in an appropriate position, she would be entitled to front pay equivalent to the compensation she would have received if she had been placed in such a position for a period not to exceed 10 years. *Glenna O. v. Department of the Air Force*, [119 LRP 40094](#), EEOC No. 0720180030 (EEOC OFO 2019).
- A material handler supervisor, the victim of unchecked sexual harassment by a coworker, was appropriately awarded front pay in addition to other remedies. The supervisor was able to work, but could not return to the agency because the undisciplined perpetrator continued to work there, and the agency's failure to take any action for almost three years indicated a record of long-term resistance to antidiscrimination efforts. *Carmina E. v. Department of Justice, Federal Bureau of Prisons*, [118 LRP 3456](#), EEOC No. 0720150011 (EEOC OFO 2018).
- The complainant, a service representative trainee, was terminated during his probationary period in retaliation for his EEO activity less than a month earlier. As a partial remedy, the EEOC decided the complainant could choose between reinstatement to the remainder of his probationary period with different supervisors or two years of front pay. *Complainant v. Social Security Administration*, [0720130027](#), [115 LRP 12056](#) (EEOC OFO 2015).

- The Department of Defense subjected the complainant, an electrician for a Navy contractor, to reprisal for prior EEO activity when it removed her. As a partial remedy, the EEOC found the complainant was entitled to three years of front pay after noting the contract was extended and it was reasonable to expect that she would have been employed for three years. *Gaynell A. v. Department of the Navy*, [11 LRP 17508](#), EEOC No. 0720100043 (EEOC OFO 2014).
- The complainant's reinstatement was not possible because of the continued hostility of the work environment and agency managers' "demonstrated resistance to EEO laws." The EEOC found the complainant was entitled to two years of front pay, which it determined was a reasonable period of time for him to find other employment. *Knott v. U.S. Postal Service*, [111 LRP 47934](#), EEOC No. 0720100049 (EEOC OFO 2011).
- Although her medical information indicated that the complainant should not be placed back into the same hostile work environment, she was able to work at another location. The EEOC found her request for front pay until she reached retirement age would be a windfall. Instead, she was awarded two years of front pay as a bridge until she was reasonably likely to have found a job. *Deirdra Brown-Fleming v. Department of Justice*, [110 LRP 66581](#), EEOC No. 0420080016 (EEOC OFO 2010).
- The agency failed to comply with the relief ordered by an administrative judge who found the complainant's reassignment was the product of retaliation. The EEOC directed the agency to place the complainant in a position comparable to his former position and issue him front pay until his appropriate placement. *Bahaudin v. Department of the Army*, [105 LRP 751](#), EEOC No. 01A41223 (EEOC OFO 2004).
- The complainant was entitled to \$116,733 in front pay in connection with his successful discriminatory harassment complaint. He met the requirements for front pay because he was able to work, but could not continue working at the agency after his reinstatement because of the unabated hostility of agency officials. *VanDesande v. U.S. Postal Service*, [104 LRP 44641](#), EEOC No. 07A40037 (EEOC OFO 2004).
- Although front pay is available only in very limited circumstances, it was appropriate here because the agency could not immediately offer the complainant the position he was discriminatorily denied. He was entitled to front pay for the two months it took for the agency to offer him a position after accepting an AJ's finding of discrimination. *Subia v. Department of Homeland Security, Immigration and Naturalization Service*, [104 LRP 31519](#), EEOC No. 01A41442 (EEOC OFO 2004).

Front pay denied

- The Department of Veterans Affairs appropriately awarded a supervisory biomedical engineer \$80,000 in nonpecuniary damages for the harm he suffered because of discriminatory harassment. However, the engineer was not entitled to front pay because he declined reinstatement, which is the preferred remedy and would have been possible in this case because he would have gone back into his previous position at the appropriate rate and would not have worked with any of the previously responsible management officials. *Emerson P. v. Department of Veterans Affairs*, [120 LRP 32945](#), EEOC No. 2019002327 (EEOC OFO 2020).
- The agency subjected the complainant, a cashier, to disability discrimination based on her back condition when it failed to provide reasonable accommodation and sent her home from work. Her request for front pay was properly denied because she was not able to return to work, even with accommodation. *Nicole T. v. Department of Defense, Defense Commissary Agency*, [117 LRP 5010](#), EEOC No. 0120143019 (EEOC OFO 2017).
- A transportation security officer was subjected to discrimination based on her disability (epilepsy) when she was terminated after she had off-duty seizures within one year. However, an AJ improperly awarded her front pay. The officer made no attempt to reapply for her position and no evidence showed that the relationship between the parties was antagonistic. *Kathleen P. v. Department of Homeland Security, Transportation Security Administration*, [116 LRP 45003](#), EEOC No. 0720150036 (EEOC OFO 2016).
- The complainant was not entitled to front pay. Although she was unhappy upon being reinstated, her issues were unrelated to the agency's discrimination. *Graham v. U.S. Postal Service*, [108 LRP 48093](#), EEOC No. 0720030064 (EEOC OFO 2008).
- **Hadley:** In *Stoll v. U.S. Postal Service*, [96 FEOR 1223](#), EEOC No. 01944793 (EEOC OFO 1996), the EEOC held that front pay is not a proper remedy when the evidence indicates that the complainant cannot work and may never work again. Because front pay is meant to compensate a complainant for future work that cannot be performed because it would be impossible to return the complainant to the work environment, it should not be used to compensate a complainant who cannot return to the previous work environment, or any other work environment. [Hadley Guide to Federal Sector Equal Employment Law and Practice: Front Pay](#).
- The Department of Homeland Security subjected the complainant to disability discrimination, entitling him to \$250,000 in nonpecuniary damages and back pay. However, the EEOC found an administrative judge erred when he awarded the complainant front pay, as there is evidence he was physically capable of working, even if reasonably accommodated. *Augustine S. v. Department of Homeland Security, Citizenship and Immigration Services*, [115 LRP 54114](#), EEOC No. 0720110018 (EEOC OFO 2015).
- The complainant was subjected to sex discrimination when she was denied a position because of stereotypical notions of how a female supervisor should behave. She was entitled to back pay until the date she voluntarily retired, but her request for front pay was denied based on her voluntary retirement. *Ivy E. v. U.S. Postal Service*, [114 LRP 24866](#), EEOC No. 0720130009 (EEOC OFO 2014).
- The complainant was not entitled to front pay because the evidence indicated that he was unable to work. *Jackson v. U.S. Postal Service*, [108 LRP 12048](#), EEOC No. 0720060048 (EEOC OFO 2008).
- Although the plaintiff prevailed on his claim of discriminatory termination, the District Court acted within its discretion in denying him front pay after finding his subsequent improper conduct caused him to have "unclean hands." Specifically, he misrepresented himself as a deputy U.S. Marshal before the Congressional Black Caucus and on his Web site after he had been discharged. *Fogg v. Department of Justice*, [107 LRP 36727](#), 492 F.3d 447 (D.C. Cir. 2007).
- The complainant was subjected to religious harassment but was not entitled to front pay because there was no evidence of lost pay. *Pamplin v. U.S. Postal Service*, [105 LRP 32805](#), EEOC No. 01A51643 (EEOC OFO 2005).
- The complainant, a former joint employee of the agency and one of its contractors, was not entitled to front pay as a remedy for his successful race discrimination complaint. He could not be reinstated because his joint employer's contract with the agency expired -- not c

of the circumstances calling for front pay. *Brinkley v. U.S. Postal Service*, [105 LRP 19802](#), EEOC No. 07A40110 (EEOC OFO 2005).

- Front pay is only available in situations where the complainant is able to work but cannot do so for reasons beyond his control. In this case the complainant was not entitled to front pay because he ultimately chose not to take the position at issue for his own convenience. *McInnis v. Department of the Navy*, [104 LRP 9497](#), EEOC No. 01A30321 (EEOC OFO 2004).
- The Veterans Health Administration subjected the complainant to disability discrimination when it denied him a reasonable accommodation and constructively discharged him. However, it properly denied his request for front pay as a partial remedy. There was no evidence that reemployment was impossible or that a subsequent working relationship with the agency would be antagonistic. *Billy B. v. Department of Veterans Affairs, Veterans Health Administration*, [115 LRP 56256](#), EEOC No. 0120132680 (EEOC OFO 2015).
- Front pay is a form of equitable relief that is awarded on rare occasions when the complainant is able to work, but cannot be reinstated "because of circumstances external to the complainant." In this case, the complainant was not entitled to front pay because he was so disturbed by the harassment that he was unable to work and took a disability retirement. *Walker v. Department of the Navy*, [103 LRP 45851](#), EEOC No. 07A20111 (EEOC OFO 2003).
- The complainant was subjected to discriminatory harassment, but she was not entitled to front pay as a remedy because she was unable to work. *Clark v. U.S. Postal Service*, [103 LRP 11211](#), EEOC Nos. 01A21594, 01A21595 (EEOC OFO 2003).

Lost wage-earning capacity

- **Hadley:** Lost earning capacity represents a loss in one's future earning power and is distinct from the issue of front pay. That is, an award for the loss of future earning capacity considers the effect that complainant's injury will have on her ability in the future to earn a salary comparable with what she earned before the injury. *Hadley Guide to Federal Sector Equal Employment Law and Practice: Future Pecuniary Damages*. See, e.g., *Carpenter v. Department of Agriculture*, [95 FEOR 3229](#), EEOC No. 01945652 (EEOC 1995).
- "Proof of entitlement to loss of future earning capacity involves 'evidence suggesting that [an individual's] injuries have narrowed the range of economic opportunities available to [her].'" *Stephens v. Department of Housing and Urban Development*, [106 LRP 17683](#), EEOC No. 01A53933 (EEOC OFO 2006), citing *Gorniak v. Nat'l R.R. Passenger Corp.*, 889 F.2d 481 (3d Cir. 1989).
- Under Title VII, awards for loss of future earning capacity are subject to the statutory cap for compensatory damages. *Kuepfer v. Department of Veterans Affairs*, [105 LRP 36725](#), EEOC No. 01A43491 (EEOC OFO 2005).
- Because she was unable to work, the complainant was not entitled to front pay as a remedy for the agency's discriminatory harassment. However, she could be entitled to future pecuniary damages for any proven lost wage-earning capacity. *Kuepfer v. Department of Veterans Affairs*, [103 LRP 36398](#), EEOC No. 01A31297 (EEOC OFO 2003).
- Although the complainant was not entitled to front pay, she was entitled to an award for her lost earning capacity because she could not return to work at the agency or any other employment as a result of the agency's discrimination. *Cook v. U.S. Postal Service*, [101 FEOR 1188](#), EEOC Nos. 01A02390, 01A03897 (EEOC OFO 2001).

Other Resources

- [Policy and Guidance: Enforcement Guidance -- After-acquired Evidence and McKennon v. Nashvil Banner Publishing Co.](#), 115 S. Ct. 879, 65 EPD Par. 43,368 (1995)
- [Quick Start Guide: Pecuniary Damages](#)
- [Quick Start Guide: Back Pay as an EEO Remedy](#)
- For more guidance, see:
 - [Hadley Guide to Federal Sector Equal Employment Law and Practice: Chapter 21 -- Forms of Relief, Subchapter 03 -- Types of Equitable Relief, Section J -- Other Forms of Equitable Relief, Subsection 01 -- Front Pay](#)

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